

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JORDAN ALSTON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MARTE, POLICE OFFICER COFESSI, POLICE OFFICER
"JOHN DOE #1", POLICE OFFICER "JOHN DOE #2",
POLICE OFFICER "JOHN DOE #3", POLICE
OFFICER "JOHN DOE #4", POLICE OFFICER
"JOHN DOE #5", and POLICE OFFICER
"JOHN DOE #6",

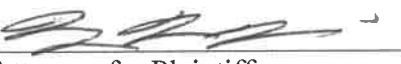
Defendants.
-----X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Kew Gardens, New York
June 30, 2015

STEVEN SIEGEL, P.C.

By: 
Attorney for Plaintiff
JORDAN ALSTON
123-12 82nd Avenue
Kew Gardens, New York 11415
T.(718) 520-0413
F.(718) 544-7044

Defendants' address:

THE CITY OF NEW YORK

Index No.:
Date of filing:
Plaintiffs designate
KINGS COUNTY
as the place of trial

The basis of the venue
is location of the occurrence

SUMMONS

Corporation Counsel
Municipal Building
100 Church Street, 4th Floor
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JORDAN ALSTON,

Plaintiff,

Index No.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MARTE, POLICE OFFICER COFESSI, POLICE OFFICER
"JOHN DOE #1", POLICE OFFICER "JOHN DOE #2",
POLICE OFFICER "JOHN DOE #3", POLICE
OFFICER "JOHN DOE #4", POLICE OFFICER
"JOHN DOE #5", and POLICE OFFICER
"JOHN DOE #6",

Defendants.
-----X

Plaintiff, by his attorney, STEVEN SIEGEL, P.C., complaining of the defendants, alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times herein mentioned, the defendant, THE CITY OF NEW YORK, was and is a municipal corporation, organized and existing under and by virtue of the Laws of the State of New York.
2. That at all times herein mentioned, the defendant, THE CITY OF NEW YORK, was a corporation doing business in the State of New York.
3. That at all times herein mentioned, the defendant, THE CITY OF NEW YORK, operated a police department as part of and in conjunction with its municipal function.
4. That at all times herein mentioned, the defendant, THE CITY OF NEW YORK maintained said police department.
5. That at all times herein mentioned, the defendant, THE CITY OF NEW YORK managed said police department.

6. That at all times herein mentioned, the defendant, THE CITY OF NEW YORK controlled said police department.

7. That at all times herein mentioned, the defendant, THE CITY OF NEW YORK, its servants, agents and/or employees employed police officers, detectives, and other personnel, to work as representatives of the CITY OF NEW YORK.

8. That at all times herein mentioned, the defendant, THE CITY OF NEW YORK employed police officers, known herein as police officers POLICE OFFICER MARTE, POLICE OFFICER COFESSI, "JOHN DOE #1", "JOHN DOE #2" "JOHN DOE #3", "JOHN DOE #4", "JOHN DOE #5", and "JOHN DOE #6", said names of the "John Doe" defendants being fictitious and presently unknown, and said full names of the said partially named defendants being presently unknown, to work as police officers of the CITY OF NEW YORK.

9. That at all times herein mentioned, the defendant, THE CITY OF NEW YORK had the duty to ensure that the actions, activities and behavior of its said servants, agents, police officers, detectives and/or employees conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm and violation of their rights under Article IV of the U.S. Constitution and corresponding section of the New York State Constitution.

10. Upon information and belief, the Plaintiff JORDAN ALSTON, herein, was never read his rights.

11. That at all times herein mentioned, the defendant, THE CITY OF NEW YORK, had the duty to ensure that its said servants, agents, police offices, detectives and/or employees conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the Plaintiff JORDAN ALSTON as well as in such a manner so as not to intentionally, wantonly and/or negligently violate the constitutional rights of the Plaintiff JORDAN ALSTON.

12. That at all times herein mentioned, the defendant, police officers POLICE OFFICER

MARTE, POLICE OFFICER COFESSI, “JOHN DOE #1”, “JOHN DOE #2” “JOHN DOE #3”, “JOHN DOE #4”, “JOHN DOE #5”, and “JOHN DOE #6”, said names of the “John Doe” defendants being fictitious and presently unknown, and said full names of the said partially named defendants being presently unknown, were servants, agents, employees and/or representatives of the defendant, THE CITY OF NEW YORK.

13. The plaintiff JORDAN ALSTON served a notice of claim in compliance with Section 50-e of the General Municipal Law. A copy of said Notice of Claim is annexed hereto and made a part hereof.

14. Over thirty (30) days have elapsed since the service of said notice of claim, and the defendants have not adjusted this matter.

15. That a 50-H hearing in connection with this matter was conducted on April 1, 2015.

16. That on the 1st day of May, 2013 at approximately 3:00 p.m., the Plaintiff, JORDAN ALSTON, was lawfully present in Carroll Park, in the State of New York, County of Kings.

17. That on the 1st day of May, 2013 at approximately 3:00 p.m., certain police officers and/or detectives and/or servants and/or agents of the police department of the defendant CITY OF NEW YORK were present in Carroll Park, in the State of New York, County of Kings.

18. That on and at the aforementioned time and place, the Plaintiff was unlawfully seized, assaulted and battered by said police officers and/or detectives and/or servants and/or agents of the Police Department of the defendant, CITY OF NEW YORK.

19. That on and at the aforementioned time and place, the Plaintiff was unlawfully seized, assaulted and battered by POLICE OFFICER MARTE, “JOHN DOE #1”, “JOHN DOE #2” “JOHN DOE #3”, “JOHN DOE #4”, “JOHN DOE #5”, and “JOHN DOE #6”, said names of the “John Doe” defendants being fictitious and presently unknown, and said full names of the said partially named defendants being presently unknown said police officers and/or detectives and/or servants and/or agents of the Police Department of the defendant, CITY OF NEW YORK.

20. The on the 1st day of May, 2013, the Plaintiff was wantonly, intentionally, maliciously, illegally, and unlawfully seized, assaulted, handcuffed, arrested, imprisoned, abused, threatened, and manhandled, while he was lawfully in Carroll Park, in the City and State of New York, County of KINGS, and continuing thereafter at other locations, including the 76th Police Precinct.

21. The on the 1st day of May, 2013, the Plaintiff was wantonly, intentionally, maliciously, illegally, and unlawfully seized, assaulted, handcuffed, arrested, imprisoned, abused, threatened, and manhandled, by POLICE OFFICER MARTE, POLICE OFFICER COFESSI, “JOHN DOE #1”, “JOHN DOE #2” “JOHN DOE #3”, “JOHN DOE #4”, “JOHN DOE #5”, and “JOHN DOE #6”, said names of the “John Doe” defendants being fictitious and presently unknown, and said full names of the said partially named defendants being presently unknown said police officers and/or detectives and/or servants and/or agents of the Police Department of the defendant, CITY OF NEW YORK, while he was lawfully in Carroll Park, in the City and State of New York, County of KINGS, and continuing thereafter at other locations, including the 76th Police Precinct.

22. The on the 1st day of May, 2013, the Plaintiff was wantonly, intentionally, maliciously, illegally, and unlawfully seized, assaulted, handcuffed, arrested, imprisoned, abused, threatened, and manhandled, by police officers and/or detectives and/or servants and/or agents of the police department of the defendant CITY OF NEW YORK while he was lawfully in Carroll Park, in the City and State of New York, County of KINGS, and continuing thereafter at other locations, including the 76th Police Precinct.

23. The Plaintiff JORDAN ALSTON was searched without sufficient cause.

24. The Plaintiff JORDAN ALSTON was cuffed and arrested in violation of his human rights.

25. All of the foregoing actions and events took place against the Plaintiff JORDAN ALSTON's will and were wrongful, unlawful, without justification, without probable cause, without any warrant or other authority of law, and deprived him of his liberty and freedom.

26. The police officers eventually released Plaintiff JORDAN ALSTON, and declined to bring charges due to the fact that there was no basis to arrest, search and detain him.

27. That the foregoing occurrences and the resulting injuries to the Plaintiff were caused solely by reason of the carelessness, negligence, false imprisonment, intentional infliction of emotional distress, abuse of process, excessive use of brutal force and wrongful assault and battery on the part of the police department of defendant, THE CITY OF NEW YORK, its servants, agents, police officers, detectives and/or employees, in violation of the Plaintiff's Civil and Constitutional rights, and without any cause, provocation or negligence on the part of the plaintiffs contributing thereto.

28. That the foregoing occurrences and the resulting injuries to the Plaintiff were caused solely by reason of the carelessness, negligence, false imprisonment, intentional infliction of emotional distress, abuse of process, excessive use of brutal force and wrongful assault and battery on the part of POLICE OFFICER MARTE, POLICE OFFICER COFESSI, "JOHN DOE #1", "JOHN DOE #2" "JOHN DOE #3", "JOHN DOE #4", "JOHN DOE #5", and "JOHN DOE #6", said names of the "John Doe" defendants being fictitious and presently unknown, and said full names of the said partially named defendants being presently unknown said police officers and/or detectives and/or servants and/or agents of the Police Department of the defendant, CITY OF NEW YORK, in violation of the Plaintiff's Civil and Constitutional rights, and without any cause, provocation or negligence on the part of the Plaintiff contributing thereto.

29. This action arises under the United States Constitution, particularly under the provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, including the Civil Rights Act, Title 42 of the United States Code, Sections 1981, 1983 and 1988 and the rights under the Constitution and laws of the State of New York.

30. Each and all of the acts of the defendants herein were done by the police department of defendant, THE CITY OF NEW YORK, its servants, agents, and/or employees, and each of them,

not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

31. Each and all of the acts of the defendants herein were done by POLICE OFFICER MARTE, POLICE OFFICER COFESSI, "JOHN DOE #1", "JOHN DOE #2" "JOHN DOE #3", "JOHN DOE #4", "JOHN DOE #5", and "JOHN DOE #6", said names of the "John Doe" defendants being fictitious and presently unknown, and said full names of the said partially named defendants being presently unknown said police officers and/or detectives and/or servants and/or agents of the Police Department of the defendant, CITY OF NEW YORK, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

32. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to be suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue their usual duties with the same degree of efficiency as prior to this occurrence, all to their great damage.

33. That this claim has been commenced and this action has been started within one year and ninety days after the plaintiff came of age and was no longer an infant under the law.

34. That all conditions and requirements precedent to the commencement of this action have been complied with.

35. That this action falls within one or more of the exceptions set forth in CPLR 1602.

36. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action, together with costs, disbursements and attorney's fees.

AS AND FOR A SECOND CAUSE OF ACTION ON
BEHALF OF PLAINTIFF

37. That Plaintiff repeats, reiterates and realleges each and every allegation contained in the First Cause of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

38. That at all times herein mentioned, the police department of the defendant, THE CITY OF NEW YORK, its servants, agents, police officers, detectives and/or employees, acted in total and wanton disregard for the safety, protection, freedom, civil and Federal and State constitutional rights of the plaintiff.

39. That at all times herein mentioned, defendants, POLICE OFFICER MARTE, POLICE OFFICER COFESSI, "JOHN DOE #1", "JOHN DOE #2" "JOHN DOE #3", "JOHN DOE #4", "JOHN DOE #5", and "JOHN DOE #6", said names of the "John Doe" defendants being fictitious and presently unknown, and said full names of the said partially named defendants being presently unknown said police officers and/or detectives and/or servants and/or agents of the Police Department of the defendant, CITY OF NEW YORK, acted in total and wanton disregard for the safety, protection, freedom, civil and Federal and State constitutional rights of the plaintiff.

40. That by reason of the foregoing, the plaintiff was caused to suffer severe and serious injuries and damages both physically and mentally, suffered grievous harm, embarrassment, defamation of character, damage to his good name, credit, character and reputation, and plaintiff was subjected to extreme public humiliation, scorn, contempt, derision and ridicule.

41. That by reason of the foregoing, plaintiff has been damaged in an amount which

exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action, together with costs, disbursements and attorney's fees.

AS AND FOR A THIRD CAUSE OF ACTION ON
BEHALF OF PLAINTIFF

42. That Plaintiff repeats, reiterates and realleges each and every allegation contained in the First and Second Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

43. That at all times herein mentioned, the police department of the defendant, THE CITY OF NEW YORK, negligently failed to provide for the safety, security and protection of the plaintiff.

44. That at all times herein mentioned, the defendants, POLICE OFFICER MARTE, POLICE OFFICER COFESSI, "JOHN DOE #1", "JOHN DOE #2" "JOHN DOE #3", "JOHN DOE #4", "JOHN DOE #5", and "JOHN DOE #6", said names of the "John Doe" defendants being fictitious and presently unknown, and said full names of the said partially named defendants being presently unknown said police officers and/or detectives and/or servants and/or agents of the Police Department of the defendant, CITY OF NEW YORK, negligently failed to provide for the safety, security and protection of the plaintiff.

45. That by reason of the foregoing, the plaintiff was injured.

46. That the foregoing occurrences and the resulting injuries to the Plaintiff were caused solely by reason of the carelessness, negligence, failure to provide for the safety, security and protection, lack of supervision, and wanton and willful disregard on the part of the police department of the defendant, THE CITY OF NEW YORK, and without any cause, provocation or negligence on the part of the plaintiffs contributing thereto.

47. That the foregoing occurrences and the resulting injuries to the Plaintiff were caused

solely by reason of the carelessness, negligence, failure to provide for the safety, security and protection, lack of supervision, and wanton and willful disregard on the part of defendants POLICE OFFICER MARTE, POLICE OFFICER COFESSI, "JOHN DOE #1", "JOHN DOE #2" "JOHN DOE #3", "JOHN DOE #4", "JOHN DOE #5", and "JOHN DOE #6", said names of the "John Doe" defendants being fictitious and presently unknown, and said full names of the said partially named defendants being presently unknown said police officers and/or detectives and/or servants and/or agents of the Police Department of the defendant, CITY OF NEW YORK, and without any cause, provocation or negligence on the part of the plaintiffs contributing thereto.

48. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action, together with costs, disbursements and attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF

49. That Plaintiff repeats, reiterates and realleges each and every allegation contained in the First, Second and Third Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

50. That all of the foregoing and the abuse of process by the police department of the defendant, THE CITY OF NEW YORK, herein, its servants, agents, police officers, detective and/or employees were in wanton, intentional and malicious disregard for the life, health, safety, freedom, protection, civil rights and well-being of the plaintiff.

51. That all of the foregoing and the abuse of process by the defendants, POLICE OFFICER MARTE, POLICE OFFICER COFESSI, "JOHN DOE #1", "JOHN DOE #2" "JOHN DOE #3", "JOHN DOE #4", "JOHN DOE #5", and "JOHN DOE #6", said names of the "John Doe" defendants being fictitious and presently unknown, and said full names of the said partially

named defendants being presently unknown said police officers and/or detectives and/or servants and/or agents of the Police Department of the defendant, CITY OF NEW YORK, were in wanton, intentional and malicious disregard for the life, health, safety, freedom, protection, civil rights and well-being of the plaintiff.

52. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action, together with costs, disbursements and attorney's fees.

AS AND FOR A FIFTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF

53. That Plaintiff repeats, reiterates and realleges each and every allegation contained in the First, Second, Third and Fourth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

54. That this is an action to redress the deprivation under color of statute, ordinance, regulation, custom or usage of a right, privilege and immunity secured to the plaintiff by the First and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly, the Civil Rights Act and 42 U.S.C. Sections 1981, 1983 and 1988 and arising under the law, statutes and constitution of the State of New York.

55. Each and all of the acts of the defendant, THE CITY OF NEW YORK, herein were done by the defendant, its servants, agents, police officers, detectives and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

56. Each and all of the acts of the defendants, POLICE OFFICER MARTE, POLICE OFFICER COFESSI, "JOHN DOE #1", "JOHN DOE #2" "JOHN DOE #3", "JOHN DOE #4",

“JOHN DOE #5”, and “JOHN DOE #6”, said names of the “John Doe” defendants being fictitious and presently unknown, and said full names of the said partially named defendants being presently unknown said police officers and/or detectives and/or servants and/or agents of the Police Department of the defendant, CITY OF NEW YORK, herein were done by the defendants under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

57. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action, together with costs, disbursements and attorney’s fees.

AS AND FOR A SIXTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF

58. That Plaintiff repeats, reiterates and realleges each and every allegation contained in the First, Second, Third, Fourth and Fifth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

59. That at all times herein mentioned, it was the duty of the police department of the defendant, THE CITY OF NEW YORK, to not hire, or to discharge as employees, those who are not fit, suitable, properly trained or instructed, constituting a potential menace, hazard or danger to the public or otherwise, those with vicious propensities and those with emotional, physical, psychological and/or physiological traits or characteristics or unsuitable or unstable or contraindicated for such employment.

60. That at all times herein mentioned, it was the duty of the Police Department of the defendant, THE CITY OF NEW YORK, to train, discipline, supervise, promulgate and put into effect appropriate rules applicable to the duties, activities and behaviors of its servants, agents,

police officers, detectives, employees and/or personnel.

61. That by reason of the negligence of the Police Department of defendant, THE CITY OF NEW YORK, in their hiring, monitoring and retention of said police officers and/or detectives with knowledge of the unsuitable, unstable and unfitness to act and serve and unfitness to continue to act and serve as employees by reason of the defendant's breach of said duties, the plaintiff was caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiff in any way contributing thereto, thereby causing him extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

62. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action, together with costs, disbursements and attorney's fees.

WHEREFORE, the Plaintiffs demand judgment against the defendants, the amount sought on each Cause of Action exceeding the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction, in amounts to be determined up on the trial of this action, together with the costs. Disbursements and attorney's fees of this action, and with interest from the date of this occurrence.

Dated: Kew Gardens, New York
June 30, 2015

Yours, etc.,
STEVEN SIEGEL, P.C.



Attorneys for Plaintiff
JORDAN ALSTON
123-12 82nd Avenue
Kew Gardens, N.Y. 11415
T.(718) 520-0413
F.(718) 544-7044

2014 NOV 20 PM 3:00

1 OF 3

IN THE MATTER OF THE CLAIM OF

VERONICA ALSTON, ON BEHALF OF,

JORDAN ALSTON,

PLAINTIFF

-against-

THE CITY OF NEW YORK, AND THE NEW YORK POLICE

DEPARTMENT 76TH PRECINCT.

DEFENDANTS.

RECEIVED
CITY OF NEW YORK
CENTRAL MANAGEMENT
BUR. INFORMATION SYSTEM

2014 NOV 20 PM 2:40

AMENDED NOTICE OF CLAIM
CLAIM#: 2013P1019917

PLEASE TAKE NOTICE that the undersigned claimant whose post office address is:

75 Bush Street, APT. 3D, Brooklyn, N.Y. 11231

Makes the following claim: resulting in injuries to claimant.

2. The defendants herein, The City of New York and The New York Police Department has a Principle office here in the County of New York.
3. NATURE OF CLAIM: By reason of Excessive Force, and failure to intervene to protect Claimant against harm and to prevent injury to claimant.
4. The time when, the place where and the manner in which the claim arose as follows:

On May 1, 2013, at approximately 3:30 p.m., claimant was stopped by a New York City Police Officer Marte who asked claimant his name and what school claimant went to, as claimant was in a public park in the County of Brooklyn. The police officer noticed claimant starting to walk out the park with four other males. The police noticed that another group of boys were following behind claimant and three (3) others, at this juncture the police started chasing the other boys, and (1) of the boys were arrested.

Claimant started walking away and was grabbed by a male police officer by the arm. Claimant asked the Police Officer to let his arm go that he was squeezing his arm tight that caused pain to run through his shoulder, at this juncture another police officer comes and

tackles claimant and throws him to ground causing him to his head; claimant began to scream to the police to get off him that they were hurting him, and that he couldn't breath as the other police punched claimant in the face causing immediate swelling and pain and then picked up and thrown into the police car.

While at the 76th. Precinct and while handcuffed to a bench another police officer asked claimant what he was looking at ? Claimant responded nothing at this juncture the police officer slapped claimant in the back of his head the officer went on to say to claimant you think you're a tough guy claimant responded no, the police continued asking claimant did he want to fight claimant started to laugh at this point the police punched claimant in the face busting claimant's lip and causing his right cheek to swell and causing claimant's eye to swell.

Claimant's mother arrived at the 76th. Precinct and saw her son's face and asked police officer Marte what happened to her son, police officer Marte said she wasn't there when it happened and that she did not know the name of the officer that beat claimant, thereafter claimant was released into his mother's custody at approximately 11:42 p.m..

Claimant suffered multiple injuries, with severe pain, sleepless nights, and severe headaches.

5. The damage and injury claimed to have been sustained is the continued pain in his eye, and cheek and face and the psychological affect and nervousness when he sees police, and the mental injuries in the amount of \$ 2.5 Million Dollars.

PLEASE TAKE FURTHER NOTICE that the claimant presents this claim for adjustment and payment and Notifies you that unless this claim is adjusted and paid within the time provided for by law from the date of its presentation to you, the claimant intends to commence an action on this claim.

Dated: 11/14/14, New York



VERONICA ALSTON ON BEHALF OF
JORDAN ALSTON

VERIFICATION OF NOTICE OF CLAIM
AMENDED

STATE OF NEW YORK

COUNTY OF Queens ss...VERONICA ALSTON, ON BEHALF OF JORDAN ALSTON, being duly sworn, deposes and

says that he is the claimant in this Action: that she has read the forgoing Amended Notice of Claim and knows the contents thereof; that the same is true to the knowledge of deponent except as to the matters therein stated to be alleged on information, and that as to those matters she believes to be true.



VERONICA ALSTON ON BEHALF OF
JORDAN ALSTON



VERONICA ALSTON ON BEHALF OF
JORDAN ALSTON

Sworn to before me on 14 day ofNov, 20 14.

NOTARY PUBLIC

Elijah Davis
Notary Public State of New York
NO: 01DA6149011
Qualified in Queens County
Commission Expires July 2018

VERIFICATION

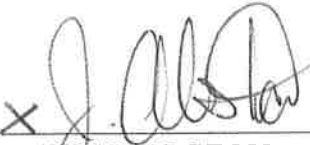
STATE OF NEW YORK)

SS:

COUNTY OF)

JORDAN ALSTON, being duly sworn, deposes and says:

I am the plaintiff in the within action; I have read the annexed **SUMMONS & COMPLAINT**, know the contents thereof and the same are true to my knowledge, except as to those matters therein which are stated to be alleged on information and belief, and as to those matters, I believe them to be true.



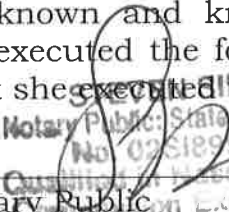
JORDAN ALSTON

STATE OF NEW YORK)

SS:

COUNTY OF (QUEENS)

On 6.30.15 before me personally came and appeared **JORDAN ALSTON** me known and known to me to be the individual described in and who executed the foregoing document, and who duly acknowledged to me that she executed the same.



Notary Public
Notary Public: State of New York
No. 02618990005
Commission Expires 8/31/19

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

JORDAN ALSTON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MARTE, POLICE OFFICER COFESSI, POLICE OFFICER
"JOHN DOE #1", POLICE OFFICER "JOHN DOE #2",
POLICE OFFICER "JOHN DOE #3", POLICE
OFFICER "JOHN DOE #4", POLICE OFFICER
"JOHN DOE #5", and POLICE OFFICER
"JOHN DOE #6",

Defendants.

SUMMONS & VERIFIED COMPLAINT

STEVEN SIEGEL, P.C.
Attorney for Plaintiff
123-12 82nd Avenue
Kew Gardens, New York 11415
T.(718) 520-0413
F.(718) 544-7044

TO:

Service of a copy of the within is hereby admitted.
DATED:

.....
Attorney(s) for

PLEASE TAKE NOTICE

Notice of Entry: that the within is a (certified) true copy of
a entered in the Office of the Clerk of the within named Court on

Notice of Settlement: that an Order of which the within is a true copy will be presented for settlement
to the Hon.

one of the Judges of the within named Court, at
on

at M.

DATED:

STEVEN SIEGEL, P.C.
Attorney for Plaintiff

TO: